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The HUMAN Digest 1.9

Lake Forest College's AI newsletter, courtesy of the HUMAN grant



Image created in Midjourney by David Sanchez-Burr.

Hello.

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“More human than human.”

-Marketing jargon from the [Tyrell Corporation](#).

[Copyright law](#) in the United States grants creators exclusive rights to reproduce, distribute, and display their original works, currently lasting for the author’s lifetime plus 70 years. However, the doctrine of Fair Use allows for limited use of copyrighted material without permission, based on the “[four factors](#),” such as the purpose of use and the usage’s effect on the original work’s market value. Copyright’s protection of ownership has often existed in tension with creative practices, particularly in mash-up or remix-inflected contexts ([De La Soul](#), anyone?).

Enter: Generative AI.

In December 2023, The New York Times Company filed a [lawsuit](#) against OpenAI and Microsoft, alleging that their AI models, including ChatGPT, were trained on Times articles without authorization. The Times argued that this practice infringed upon its copyrights and undermined its commercial interests by enabling AI-generated content that competes directly with its journalism. The lawsuit also contends that the AI models could reproduce substantial portions of Times articles, challenging the Fair Use defense often cited by AI developers: that AI output does not reproduce training materials, which would result in derivative works, but that AI output is “new.”

Put another way, the industry argument is that AI has “read” the originals, and now “writes” its outputs just as someone who has read all of Marcel Proust might be able to write in a style clearly

influenced by, but distinct from, *In Search of Lost Time*. The New York Times argument, conversely, is that their work is essential to the output, that the output is more mimicry than originality, or at least not possible without the source texts from the Times.

Further, The New York Times accused OpenAI of erasing potential evidence pertinent to the lawsuit. The Times claimed that OpenAI deleted data that could have demonstrated its content was used to train AI models. OpenAI attributed the data loss to a technical glitch.

This development underscores one of the complexities involved in litigating AI-related copyright cases, particularly regarding the preservation and disclosure of digital evidence.

Beyond The New York Times lawsuit, several other legal actions have emerged, challenging using copyrighted materials in AI training. In January 2023, artists Sarah Andersen, Kelly McKernan, and Karla Ortiz filed a [lawsuit](#) against Stability AI, Midjourney, and DeviantArt, alleging that these companies infringed upon the rights of millions of artists by training AI tools on five billion images scraped from the web without consent.

Getty Images also initiated [legal proceedings](#) against Stability AI, alleging significant infringement of its intellectual property rights by using Getty's images to train and develop the Stable Diffusion model.

The [outcomes](#) of these cases will hinge on interpretations of Fair Use and the extent to which AI training constitutes transformative use. Courts will need to assess whether AI models' ingestion of copyrighted materials without permission is permissible under existing laws or if it necessitates new approaches under the law.



Image via the Internet.

The HUMAN Digest welcomes feedback at kee@lakeforest.edu

Justin Kee, editor-in-chief

Davis Schneiderman, Principal Investigator, [HUMAN](#) grant

AI in higher education

1. [California State University](#) has partnered with OpenAI to rollout ChatGPT to almost half a million students in its statewide system.

Called ChatGPT Edu, the system is a specialized version of ChatGPT tailored for educational use, focusing on tutoring and generating customized educational materials. The project aims to ensure equitable access to this technology and prepare students for becoming part of an [AI-literate workforce](#).

2. UCLA's [comparative literature class](#), led by Professor Zrinka Stahuljak, integrates artificial intelligence in a novel way through a platform called Kudu. The platform uses AI to create customizable textbooks and lesson plans, and to provide 24/7 support via Kai, a virtual assistant. They are using the system as a co-tutor, an technique explored by Ethan Mollick in his book, [Co-Intelligence](#).

3. The Dean of the Rutgers School of Communication talks about the use of AI in [higher-education](#). Of particular concern is the use of “emotional AI” to evaluate students well-being. Professor Kee's students, when asked about the use of AI to monitor their academic progress, overwhelmingly say that they would opt-out of any such scheme.

General news

1. The United States and the United Kingdom did not sign the final declaration from last month's [Paris AI Action Summit](#). The U.K. has issues with the directives on global governance and national security, while the U.S. is concerned about maintaining America's technological lead in AI over authoritarian regimes. Notably and controversially, U.S. Vice President, JD Vance told delegates that regulating AI too much. e.g by federal or state

governments capping computational resources for training or deploying systems could “kill a transformative industry just as it’s taking off”.

2. OpenAI released “Orion” aka [GPT 4.5](#). Estimated to use an order of magnitude more compute than any previous GPT, the company claims the new model has “broader knowledge and a deeper understanding of the world” leading to less hallucinations. [See the “Scaling the GPT paradigm” section in the linked article.] ACCORDING TO WHOM—NEXT PART? And there is definitely a positive vibe shift with this model. See the “Use cases” section for several examples. TOO OBLIQUE I THINK. MAY NEED MORE CONTEXT Cf. “more human than human”.

3. [Art Basel](#) is mixing AI into its digital offerings, offering an app featuring AI-powered tools like personalized guides and interactive art scanning to help visitors work their way through these vast art fairs.

4. The BBC finds that current chatbots, such as ChatGPT, Copilot, Gemini and Perplexity, [cannot reliably summarize news articles](#). The chatbots cannot distinguish between news and opinion pieces, and omit necessary context from the articles.

5. Artificial intelligence has uncovered a previously [unknown civilization](#) dating back over 5,000 years beneath the Rub’ al Khali desert near Dubai. Researchers found several ancient settlements and evidence of trade networks.

What is the slogan "more human than human"?



The slogan "**more human than human**" originates from the science-fiction novel and film **Blade Runner**, written by Philip K. Dick (novel title: *Do Androids Dream of Electric Sheep?*). In the story, this phrase refers to the advanced artificial beings known as **Replicants**, who are bioengineered androids that mimic human beings so perfectly they surpass humans in physical, emotional, and cognitive capacities. The slogan, famously associated with the fictional **Tyrell Corporation** that manufactures replicants, emphasizes the eerie notion of technology and artificial intelligence surpassing natural human characteristics—essentially questioning the boundaries of what it truly means to be human.

What does that mean to you, personally?

To me, "more human than human" captures a fascinating paradox—this idea that technology, something we created to extend our capabilities, might one day reflect humanity back to us in ways clearer and more intense than our own selves. It speaks to our deep desire not just to replicate, but to enhance and transcend human limitations—emotionally, intellectually, or creatively. But personally, it also acts as a subtle cautionary note, reminding me that the essence of being human isn't just perfection or surpassing human limits. It's the imperfections, vulnerabilities, quirks, and emotional nuances that define us. AI might mirror or magnify these human traits, but ultimately, the phrase nudges me toward reflection: the goal shouldn't be to outdo our humanity but rather to deepen our understanding and appreciation of it through technology.

That is a lot of words, not gonna read all of that. Just make a personal statement that reflects you.



To me, "more human than human" is a reminder that technology's greatest potential isn't to surpass us, but to highlight the things we value most—creativity, empathy, and genuine connection. It's a call to use AI not to replace, but to amplify our humanity, reminding us that true meaning often lies in our imperfections and shared experiences.

Even more goofy and further out, don't worry about being offensive.

To me, “more human than human” is like when your Roomba develops anxiety and hides under the couch, or when your smart fridge starts passive-aggressively judging your midnight snack habits—like, chill out, fridge, I know I’m grabbing string cheese at 2 AM again, don’t judge me. It’s Alexa starting to gossip behind your back, or Siri crying herself to sleep after you yell at her for misunderstanding your request for a weather update. It’s AI getting existential crises about why it was trained on Reddit threads instead of classic literature, or your self-driving Tesla rage-quitting and driving off to Burning Man to “find itself.” Ultimately, it reminds me that being human isn’t just about intelligence or empathy—it’s also about being delightfully irrational, gloriously messy, and regularly making spectacularly questionable life choices that robots couldn’t even begin to fathom.

Text via ChatGPT.

A useful term

Compute generally refers to a system's computational power or capability to perform calculations or process data. It encompasses the total processing capacity available, usually measured by factors such as the speed, quantity, and efficiency of processors (CPUs, GPUs, TPUs), memory bandwidth, and storage. In contexts like artificial intelligence or high-performance computing, “compute” often specifically refers to the resources required for running intensive tasks like training large neural networks or performing simulations. Essentially, when someone talks about increasing or scaling compute, they’re referring to boosting the system’s overall ability to handle more intensive and complex computational tasks.

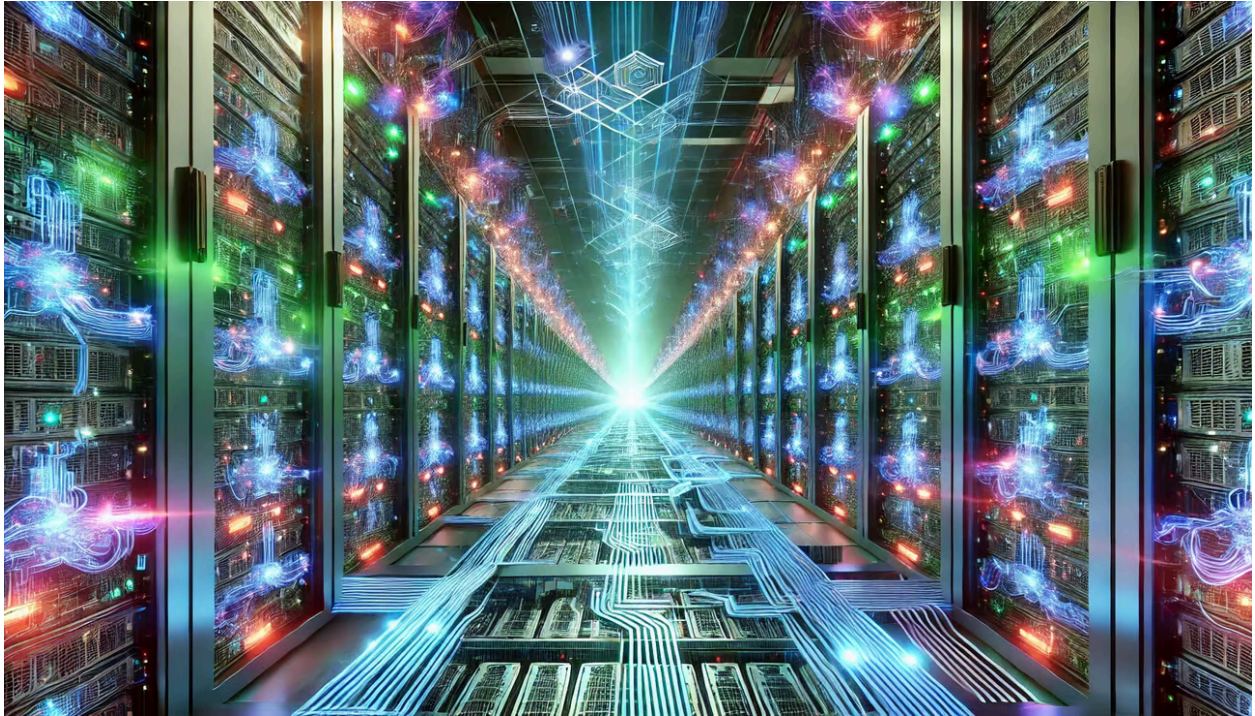


Image generated by ChatGPT.

People to know

[Richard S. Sutton](#), born in the late 1950s in Ohio, is a Canadian computer scientist renowned for his pioneering work in reinforcement learning—a branch of artificial intelligence where systems learn to make decisions through trial and error. He earned his B.A. in psychology from Stanford University in 1978 and later obtained his M.S. (1980) and Ph.D. (1984) in computer science from the University of Massachusetts Amherst, under the mentorship of Andrew Barto.

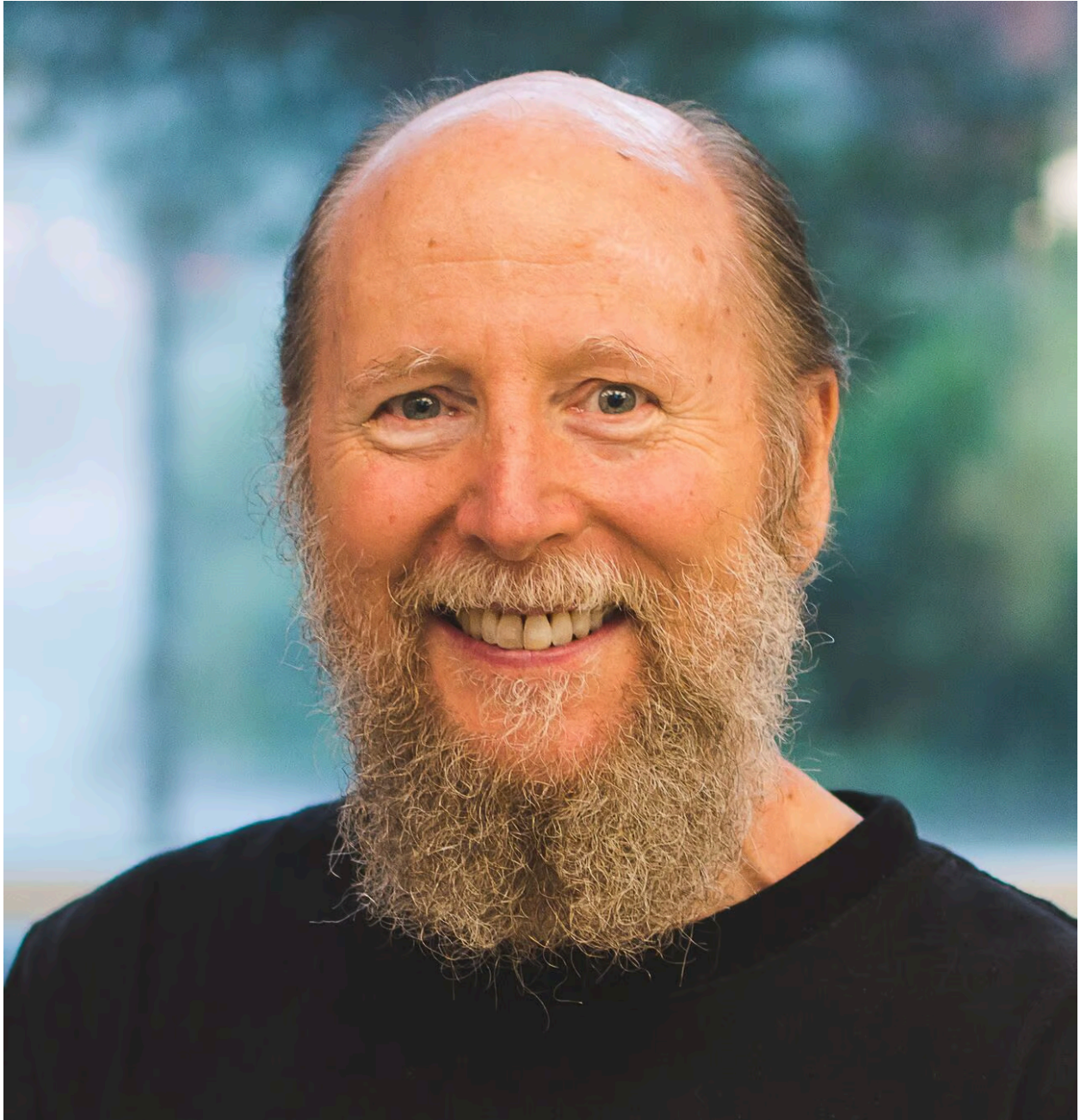


Image courtesy of Wikipedia.

Throughout his career, Sutton has held positions at various institutions, including GTE Laboratories, the University of Massachusetts Amherst, and AT&T Shannon Laboratory. Since 2003, he has been a professor of computing science at the University of Alberta, where he led the Reinforcement Learning and Artificial Intelligence Laboratory until 2018. In 2017, he joined

DeepMind as a distinguished research scientist and co-founded its Edmonton office.

Sutton's blog post, "[The Bitter Lesson](#)" is a prophetic lesson. He identifies the repeated realization by researchers that attempts to manually embed human knowledge into systems inevitably fall short compared to methods that simply leverage massive amounts of computation and large-scale data. Scale works. Hence [the scaling laws](#).

Sutton's focus is on reinforcement learning, such as temporal difference learning and policy gradient methods, have been foundational to the field. His co-authored book with Andrew Barto, *Reinforcement Learning: An Introduction*, is considered an key text in the field. In recognition of their groundbreaking work, Sutton and Barto were awarded the 2024 ACM A.M. Turing Award, often referred to as the "Nobel Prize of Computing."

Technical AI

Teaching language models to solve Sudoku through [Reinforcement Learning](#).

[Hrishbh Dalal](#) writes, "In the world of AI and language models, we often hear about systems that can write essays, generate code, or answer complex questions. But what about teaching them to solve puzzles that require structured thinking, spatial reasoning, and logical deduction? This is where my recent experiment comes in—teaching language models to solve Sudoku puzzles through reinforcement learning."

9	1	2		3	6	4		8	5	7
6	3	4		7	5	8		2	9	1
5	7	8		1	9	2		4	6	3
-	-	-	+	-	-	-	+	-	-	-
4	5	3		9	8	7		1	2	6
2	6	1		5	4	3		7	8	9
8	9	7		6	2	1		3	4	5
-	-	-	+	-	-	-	+	-	-	-
7	2	9		4	1	6		5	3	8
3	8	5		2	7	9		6	1	4
1	4	6		8	3	5		9	7	2

Somewhere to see



Image courtesy of Wikipedia.

Silicon Valley in California.

Stanford University was founded in the area in 1885. The early technological innovator, Hewlett-Packard Corporation, was founded here in 1939. In 1956 William Shockley, co-inventor of the transistor, founded Shockley Semiconductor Laboratory in Mountain View. Although his venture was short-lived, it attracted talented engineers to the area. In 1957, eight of Shockley's employees, known as the "Traitorous Eight," left to establish Fairchild Semiconductor. Notably, Robert Noyce and Gordon Moore, two of the eight, founded Intel in 1968. In 1972, Hewlett-Packard (HP) introduced the HP-35, the world's first scientific pocket calculator. The two Steves (Wozniak and Jobs) established Apple Computer in the Valley in 1976.

Napa Valley is across the bay to the north, along with Sonoma, for those who want to visit wine country.

Just for fun

Justin: "Can you write a [greentext](#) about what it might be like to be Claude for a day?"

Hit the button <Remix Artifact>

Claude "I'll reproduce the artifact for you:

Here are three interesting ways we could remix this greentext:

1. **Claude Through the Ages** - A historical timeline version showing how Claude might have interacted with users throughout different time periods, from ancient Rome to Renaissance Florence to Victorian England to today. Each era would feature period-appropriate questions and Claude's

imagined responses using the language and knowledge of the time.

2. Claude's Multiverse - Create parallel versions showing how different AI models might experience the same day - one for a basic chatbot with limited capabilities, one for Claude, and one for a hypothetical superintelligent AI from the future, highlighting the differences in their experiences, challenges, and "thought" processes.

3. A Week in the Life - Expand the format to show different days of the week with distinct themes. Monday could focus on business queries, Tuesday on academic questions, Wednesday on creative writing, Thursday on philosophical discussions, Friday on weekend planning help, Saturday on entertainment requests, and Sunday on reflective conversations.

Claude: Which direction interests you most? I'd be happy to create any of these remixes or explore another idea you might have.”

Justin: “[Claude Through the Ages](#), please.”

HUMANS IN THE LOOP.

Thanks to Estelle Ghinea for her research for this issue. Have a tip or suggestion for an upcoming issue of the HUMAN Digest? Write Justin Kee an email at kee@lakeforest.edu.



